

Kifisias Avenue 1-3, 11523 Athens
Tel: 210 6475 600 • E: contact@dpa.gr • www.dpa.gr

Athens, 18-12-2024
Ref. No.: 3609

DECISION 50/2024
(Section)

The Hellenic Data Protection Authority convened at the invitation of the President in a Section meeting via teleconference on Wednesday, November 27, 2024, at 09:00, in order to examine the case referred to in the background of this document. Present were the Deputy President of the Authority, Georgios Batzalexis, due to the absence of the President of the Authority Konstantinos Menoudakis, and Grigoris Tsolias, regular member, and Dimosthenis Bougioukas, alternate member, as rapporteur, replacing the regular member Konstantinos Lamprinouidakis, who, although duly summoned, was unable to attend due to a conflict. Also present, without voting rights, were Charikleia Latsiu, legal auditor, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With the complaint dated June 12, 2023 (and with ref. no. DPA G/EIS/4350/12.06.2023), A informed the Authority that doctor B proceeded to process (posting on a social media platform, Instagram) her personal data (photos of her without concealing all her identifying features) without a legal basis, beyond the purposes for which she had given consent, while she had the explicit assurance from the complained doctor that her data would be used only for medical purposes and submitted a complaint to the Authority for violation of the rights of erasure, restriction of processing, and objection, under Articles 17, 18, and 21 of the GDPR, respectively.

2

Specifically, A informed the Authority that she first visited the office of the complained doctor in September of ..., in order to be informed about the performance of two surgeries (...). During this first visit in September of ..., A signed the personal data processing form, which stated that the processing concerns exclusively medical and scientific purposes. During this initial visit, the complainant allowed the doctor to take photographs of the surgical sites (...), because this case was medically special (...), with the explicit assurance from the doctor that the photographs would be used only for the aforementioned medical – scientific purposes, without revealing her identity. On ..., the complainant visited the office of the complained doctor for the second time, in order to undergo the final medical assessment prior to the scheduled surgery on Before the surgical procedures, the doctor marked the surgical sites with a marker and took photographs of these sites again for his records. At that time, the complainant, as she claims, reiterated that she did not wish for any publication of her photographs on the internet and social media. According to the complaint, the assistant of the complained doctor, G, assured her that no photographs would be published without her consent and that they were intended for the doctor's records. On ..., the complainant returned to the office of the complained doctor for the removal of stitches and the usual postoperative check, during which the complained doctor again photographed the operated areas of her body. Even then, the complainant, as she claims, emphatically stated – for the third time – that she did not wish for the posting of her photographs on the social media accounts maintained by the doctor. Nevertheless, the following day, namely on ..., the complainant discovered that the photographs concerning one of the two surgeries (...) were posted on the official pages (profiles) maintained by the complained doctor on Instagram and Facebook. In the posted photographs, the complained doctor had removed her face; however, "(...) while other identifiable elements of me, such as ... were very apparent, accompanied by an accurate description of my surgery! ...". As a result, the complainant argues that: "Anyone who knew me and

3

"if anyone remembered anything from the above, they could easily perceive that in the photographs I

am depicted, meaning they could identify me and become aware of... my sensitive medical data (...)." Immediately upon seeing the photographs, the complainant contacted the doctor's assistant via Viber, protested that the doctor had posted the photographs without her notification and consent, and requested their removal from all of the doctor's social media. Indeed, the doctor complied with her request, and the photographs were taken down from social media. According to the complaint, the doctor's social media pages are particularly popular with... thousands of Instagram followers and... thousands on Facebook, while the complainant's photographs had already gathered... likes on Instagram and... likes with two comments on Facebook within just a few hours. Nevertheless, A complains that the doctor reposted her photographs from the surgery... on his official Instagram profile a few months later, with a description of her case (e.g., ...), which have already gathered... likes, despite her explicit objection and refusal. Consequently, A, with the... extrajudicial complaint – invitation – statement to the surgeon, called upon him to: a) "(...) withdraw my photographs from social media and delete them from your records based on Article 17 GDPR, otherwise, alternatively, limit the purpose of processing based on Article 18 GDPR exclusively and solely for medical purposes (...)" and b) "(...) send me a complete copy of my medical records that you maintain (including the photographs and the contract for processing my personal data (...))."

With the submitted complaint, A protests before the Authority for violation of the rights of deletion, restriction of processing, and objection under Articles 17, 18, and 21 GDPR, respectively, informing, following the above, the Authority that the respondent: "partially responded, by deleting my data from the Instagram page. He has not yet responded regarding my request for satisfaction of the right to deletion/restriction of processing and the right to object, while additionally, as the doctor's assistant, Ms. G, stated to me in a related communication, my personal data has been transmitted to a third company that manages the doctor's social media, without any prior notification and consent."

The Authority, upon examining the complaint, summoned the respondent doctor with the document no. ΑΠΔ Γ/ΕΞΕ/1729/06.07.2023 to submit complete clarifications regarding the allegations.

In response to the above document, the respondent doctor, with his document no. ΑΠΔ Γ/ΕΙΣ/6332/11.09.2023, informed the Authority, among other things, that: 1) the complainant, during the preoperative stage, received and completed a consent form for the processing of personal data, which includes a specific field for the taking of photographs and their posting without revealing the identity of the patient in a direct or indirect manner. The relevant field was positively completed by the complainant, and as a result, she did not exclude the use of her photographs. 2) "The taken photographs were processed so that the identity of the person depicted could not be determined. Thus, her face was removed, we limited the publication only to..., and since there was no other element capable of identifying the patient, they were published. Therefore, the complainant unjustly accuses me of supposedly being unaware that she granted us the right to post her photographs, as she signed the relevant consent for taking the photographs, without prohibiting their publication by indicating her refusal in the relevant section of the consent form." 3) "After a while, the complainant contacted the office and asked my assistant to take down the photographs that had been posted, as she did not wish for them to be online. Indeed, as she herself admits (...) immediately and despite her previous consent for the use/publication of the photographs, I requested that they be removed from every medium, which was done. I must emphasize that we took down all the photographs of the patient, even though we found her request excessive, as none of the elements in the photographs could lead to her identification (...)." 4) "(...) About four months later, we mistakenly posted, without connecting the photographs to the previous stance of the..."

5

The complainant, a similar photograph of her, in which there was neither the ... of the complainant nor the This was not done in order to avoid displeasing the complainant, as there was no intention to repost her photographs after her statement, but because after her previously mentioned displeasure regarding the publication of the photographs, I requested that all photographs of patients be processed and that any identifying information that could potentially identify a patient be removed. Thus, fully respecting the complainant's wishes, there was no intention on my part to publish photographs of her, but the second post was made entirely by mistake. Furthermore, I possess a very large photographic

archive of similar interventions, as well as the consent of the patients, so there was no need to use the specific photographs." The respondent doctor concludes: 5) "In summary, during the first posting of the photographs, we had the consent of the complainant and it was impossible to identify her from the photographs; we immediately removed the photographs, satisfying her wish even though we considered it excessive. By mistake and without the intention of reposting her photographs, we reposted photographs of her, and with the delivery of the extrajudicial statement, we satisfied all that she requested with it. Thus, all requests of Ms. A were fulfilled."

Subsequently, the complainant A, having been informed of the above response from the respondent with the reference number ΑΠΔ Γ/ΕΙΣ/6790/27.09.2023, in her supplementary application questions: "(...) Furthermore, it is puzzling how, while he claims to have made such exceptional anonymization during the second - mistakenly - post following the receipt of my extrajudicial statement, he was able to immediately recognize which photographs pertained to me and deleted them from his page the same day? Additionally, why did I need to serve an extrajudicial notice and further file a complaint with the ΑΠΔΠΧ in order for him to take the measures he should have initially implemented following the exercised right of objection, nor to avoid the second - mistakenly - publication?"

Moreover, insisting on the subject of the complaint, she argues, among other things, that: "(...) 1) the consent given to the respondent was insufficient (given that the consent exclusively concerned use for medical purposes), so that he could use my data in the manner and for the purpose he used them (posting online for advertising - promotional purposes), 2) despite my explicit objection, he proceeded to post them twice, having made edits to which I did not consent and while identification was possible, 3) he transmitted my sensitive data (my photographs and descriptions of medical procedures) to third parties (to the third company mentioned by Ms. G) without my consent, 4) he did not inform me of the identity of these third recipients, 5) he did not confirm the deletion of my data from his records, nor did he state that he would limit the purpose of processing based on Article 18 of the GDPR exclusively to medical purposes, and therefore the respondent has committed relevant violations under the Regulation and the law."

Finally, the respondent doctor, having been informed of the above supplementary application from the complainant, in his response with reference number ΑΠΔ Γ/ΕΙΣ/7312/17.10.2023 to the Authority, focuses on the status of the complainant as ..., emphasizing that for this reason "she is not entitled to claim alleged non-notification" and argues, countering the allegations, that: "the element of recognition is judged absolutely objectively and obviously any reasonable person would conclude that the recognition of the complainant is impossible, especially when it concerns the specific individual, who resides permanently ... and for this reason even the slightest possibility of recognition is completely diminished." Finally, the respondent asserts that he never transmitted the complainant's data to a third company, and that he has satisfied the requests of the complainant, with the exception of the (substitutive) request of the complainant for the deletion of her entire medical file, as he is legally obliged to retain it for a specific period.

Subsequently, the Authority summoned with reference numbers Γ/ΕΞΕ/2652/02.10.2024 and Γ/ΕΞΕ/2653/02.10.2024 the A and B, respectively, to appear at a meeting of the Authority's Department on Wednesday, 16.10.2024 in order to...

7

The aforementioned complaint was discussed, as well as ex officio in relation to the fact of taking photographs of the complainant and the relevant notification through the form of "information & consent declaration regarding personal data" for the overall compliance of the complained physician with the requirements of Article 5 paragraph 1 of the GDPR. In this session, B and A were present, along with the attorney-in-fact of Nikolaos Mylonas (Bar Association Registration No. ...). During this session, the participants, after presenting their views, were given a deadline until 30.11.2024 for the submission of written statements. Following this, A, through her attorney-in-fact, submitted the memorandum dated 30.10.2024 (with reference number ΑΠΔ Γ/ΕΙΣ/8328/30.10.2024), with which, among other things, to support her claim that the posted photographs fall under the definition of personal data, she presented a decision from the Lithuanian Data Protection Authority VDAI, which

accepted that the posting of photographs of part of the complainant's body, without revealing his face, from the other elements of the post (in this case, the length and color of the patient's hair, as well as the location of his tattoo) constitutes processing of personal data. Correspondingly, B submitted the memorandum dated 04.11.2024 (with reference number ΑΠΔ Γ/ΕΙΣ/8487/05.11.2024), due to personal impediment. The Authority, after examining the file's elements, having heard the rapporteur and the clarifications from the assistant rapporteur, who was present without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since, from the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation 2016/679, hereinafter GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data.

8

Specifically, from the provisions of Articles 57 paragraph 1 point (f) of the GDPR and 13 paragraph 1 point (z) of Law 4624/2019, it follows that the Authority has the competence to address A's complaint regarding the violation of the rights of erasure, restriction of processing, and objection under Articles 17, 18, and 21 of the GDPR, respectively, by physician B during the posting of photographs of part of her body on the social media of the complained party (Instagram) after the revocation of the relevant consent she initially provided (second post), to the extent that it is established that there was processing of identifiable personal data by the data controller and thus the Authority's competence is established under Articles 2 paragraph 1 of the GDPR and 2 of Law 4624/2019 to exercise the aforementioned competence. Furthermore, from the provisions of Articles 57 paragraph 1 point (a) and (h) of the GDPR and 13 paragraph 1 point (h) of Law 4624/2019, it follows that the Authority has the competence to ex officio check, within the framework of the reported violation of rights, the compliance of the complained physician with the requirements of Article 5 paragraph 1 of the GDPR concerning the processing of the complainant's personal data and the relevant information that he is obliged to provide at the data collection stage through the form of "information & consent declaration regarding personal data" based on his obligation arising from the accountability principle of Article 5 paragraph 2 of the GDPR.

2. Since, Article 5 of the GDPR establishes the principles of processing that govern the processing of personal data. Specifically, it is stated in paragraph 1 that personal data, among other things: "a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, transparency'), b) shall be collected for specified, legitimate purposes and shall not be further processed in a manner that is incompatible with those purposes (...), c) shall be adequate, relevant and limited to what is necessary for the purposes for which they are processed ('data minimization') (...) e) shall be kept in a form which permits identification of data subjects for no longer than is necessary for the purposes of processing personal data; personal data

9

may be stored for longer periods, provided that personal data is processed only for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, and provided that appropriate technical and organizational measures required by this regulation are applied to ensure the rights and freedoms of the data subject ("storage limitation") (...).

3. Since, according to the provisions of Article 5, paragraph 2 of the GDPR, the data controller bears the responsibility and must be able to demonstrate compliance with the principles of processing established in paragraph 1 of Article 5. As the Authority has ruled, with the GDPR a new compliance model has been adopted, the central point of which is the principle of accountability, under which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in accordance with the relevant legislative provisions.

Furthermore, the data controller is burdened with the further duty to demonstrate at any time their compliance with the principles of Article 5, paragraph 1 of the GDPR.

4. Since, in accordance with Article 8, paragraph 1 of the Charter of Fundamental Rights of the European Union, Article 9A of the Constitution, and Recital 4 of the GDPR, the right to the protection of personal data is not absolute, but must be assessed in relation to its function in society and weighed against other fundamental rights, in accordance with the principle of proportionality. The GDPR respects all fundamental rights and adopts the freedoms and principles recognized in the Charter, particularly the respect for private and family life, home and communications, the protection of personal data, freedom of thought, conscience and religion, freedom of expression and information, business freedom, the right to an effective remedy and a fair trial, and cultural, religious, and linguistic diversity.

5. Since, according to the provisions of Articles 2, paragraph 1 of the GDPR and 2 of Law 4624/2019, the rules for the protection of personal data apply "to the wholly or partly automated processing of personal data, as well as to the non-automated processing of such data which are included or are intended to be included in a filing system." In this case, a critical condition for establishing the Authority's jurisdiction is the determination that the contested posted photographs of the complainant can be directly or indirectly attributed to a specific identified or identifiable natural person and consequently constitute personal data of the complainant (Article 4, point 1 of the GDPR). Recital 26 of the GDPR explains regarding the determination of this concept: "The principles of data protection should apply to any information concerning an identified or identifiable natural person. Personal data that has been pseudonymized, which could be attributed to a natural person by the use of additional information, should be considered information related to an identifiable natural person. To assess whether a natural person is identifiable, all means that are reasonably likely to be used for the identification of the natural person should be taken into account, such as the separation of the data, either by the data controller or by a third party for the direct or indirect verification of the identity of the natural person. To determine whether certain means are reasonably likely to be used for the verification of the identity of the natural person, all objective factors should be considered, such as the costs and time required for identification, taking into account the technology available at the time of processing and technological developments. The principles of data protection should therefore not apply to anonymous information, that is, information that does not relate to an identified or identifiable natural person or to personal data.

11

character that has been rendered anonymous in such a way that the identity of the data subject cannot or can no longer be ascertained. This regulation therefore does not concern the processing of such anonymous information, nor, among other things, for statistical or research purposes." Furthermore, in Opinion 4/2007 regarding the meaning of the term "personal data" by the Article 29 Data Protection Working Party, it is explained, concerning the means of identifying a person, that it is not sufficient for there to be merely a hypothetical possibility of distinguishing an individual for their identity to be ascertainable; rather, if, taking into account all means that may reasonably be used either by the data controller or by a third party, this possibility does not exist or is negligible, the individual should not be considered as a person whose identity can be ascertained, and the information should not be regarded as personal data. In applying the criterion of "all means that can reasonably be used, either by the data controller or by a third party," all relevant factors should be specifically taken into account. The cost of identifying the individual is one factor but not the only one. The overall intended purpose, the manner in which the processing is structured, the benefit anticipated by the data controller, the competing interests of individuals, as well as the risk of organizational dysfunctions (e.g., breaches of privacy rules) and technical failures should all be considered. On the other hand, the assessment of compliance with the criterion is dynamic, meaning that the most recent technology at the time of processing and its potential for development during the data processing period must be taken into account.

6. In this case, the two photographs in question of the complainant (before and after ...), which were

posted on a social media platform of the respondent surgeon (Instagram), depicting part of her body with the title "... and on which the references ..." have been placed, do not primarily constitute information that can easily be attributed by third parties (the average reader/viewer of the specific social media platform) to the complainant. Specifically, the photographs in question, which depict part of the complainant's body, without any other identifying element being placed on them from which even indirectly the identity of the complainant can be ascertained (e.g., first name, date of the surgery performed), do not primarily constitute identifiable personal data within the meaning of Article 4(1) of the GDPR. Moreover, there is no other distinctive characteristic or trait visible on the posted photographs, such as the tattoo on the body of the complainant in the decision of the corresponding Lithuanian Authority provided by the complainant with her memorandum, from which her identity could be determined by third parties. Therefore, the complainant's assertion that her identity could be ascertained from "(...) other identifiable elements of mine, such as ... were clearly visible, accompanied by an accurate description of my surgery! Anyone who knew me and remembered anything from the above could easily perceive that I am depicted in the photographs, that is, identify me and gain knowledge of ... sensitive, medical data," is unfounded, since, first, the other identifying elements cited by the complainant (namely ...) do not pertain to the second examined post – on which the alleged violation of rights is based – in which, in any case, as it emerged, the respondent had removed them. Furthermore, second, it appears that the aforementioned other identifying elements cited by the complainant are not capable on their own and in combination with the other elements presented in the posted photographs (the name of the doctor, the method of surgery used) to easily lead to the broad identification of the complainant.

13

disclosure of her identity by third parties. In any case, the fact that the complainant can recognize herself in the disputed photograph does not make her identifiable by third parties, nor has anything to that effect been proven. The defendant physician rightly argues in this regard: "The complainant invoked ..., elements that are obviously impossible to identify someone, If we assumed that she had ..., there might be (albeit exaggerated) an issue of identification. ..."5. Furthermore, the complainant does not prove before the Authority in an indisputable manner her claim that: "anyone who knew me and remembered anything from the above could easily perceive that I am depicted in the photographs, that is, identify me and gain knowledge ... of my sensitive medical data (...)", so that her claim regarding the identification of the posted photographs by third parties can be accepted. However, from the entirety of the case file and taking into account the above conceptual clarifications from Recital 26 of the GDPR and Opinion 4/2007, particularly in relation to the use of means to ascertain the identity of a person by the data controller themselves, it emerges that the disputed photographs of the complainant, which were posted on the social media of the defendant physician (Instagram), originate from his medical file, in which the identification and verification of the complainant's identity is primarily necessary for medical documentation purposes throughout the duration of its lawful retention under Article 14 paragraph 4 subparagraph a of Law 3418/2005 (Government Gazette A' 287), that is, for at least a decade. Moreover, it is crucial in this case that the processing of the posting of the photographs on which the alleged violation of rights is based was carried out on a social media platform of the same defendant surgeon, who, in any case, as the data controller of the file maintained due to the provision of medical care to the complainant (the primary purpose of the initial collection of the photographs), has the ability to identify and verify the identity of his client/patient, even in anonymized/pseudonymized (for the broad online audience) information that he posted6. This finding is further supported by the claim of the defendant physician that "(...) upon investigating the applications, we realized that we had indeed mistakenly re-uploaded the photographs, without linking them to the specific patient, and we immediately (on the same day) withdrew them again (...) processed, however, according to our established practice, so as to eliminate even the slightest possibility of identifying the patients," as well as that "(...) the identification of the photograph of the complainant that had to be deleted at her request was obviously done by comparing the posted photographs with the original files that I maintain in the medical records of the patients (...)". Therefore, the defendant physician's assertion that the second (from ...) posting of the disputed photographs, on

which the alleged violation of the complainant's rights is based, was made by mistake, is unfounded, as he himself admits he could easily, as the data controller, identify the photographs he posted (in relation to the information he provided on them - medical method applied ...), from the medical file and in conjunction with the other information contained in the medical file of the specific patient⁷ and attribute them to the person of the complainant, and the additional processing (removal of ... and other details) in relation to the first posting was not sufficient to exclude the possibility of identifying the complainant's identity by the defendant physician himself, as the data controller. Consequently, the Authority finds, in this case, that the disputed posted photographs of part of the complainant's body on which the examined complaint regarding the violation of her rights is based constitute personal data of the complainant, as they can be attributed

6 See relevant decision of the Dutch Court which ruled that when pseudonymous data can be attributed to a specific natural person using supplementary information, they constitute personal data under the GDPR, available at the link

https://gdprhub.eu/index.php?title=Rb._Midden-Nederland_-_C/16/536914/_/HA_RK_22-78

7 Article 14 paragraph 2 of Law 3418/2005 specifically provides as minimum content of the medical file: "Medical records must contain the full name, patronymic, gender, age, profession, address of the patient, dates of visits, as well as any other essential element related to the provision of care to the patient, such as, indicatively and depending on the specialty, the health complaints and the reason for the visit, the primary and secondary diagnosis or the treatment followed."

15

In any case, the reported physician, as the data controller, is obliged to identify and verify the identity of the complainant, and therefore the Authority has the jurisdiction to address the submitted complaint, in accordance with Articles 2(1) of the GDPR and 2 of Law 4624/2019.

7. Furthermore, within the framework of the accountability principle under Article 5(2) of the GDPR, it was established that the reported physician based the further processing of the disputed photographs (extraction from the medical record and posting on a social media platform) on the explicit consent of the complainant, as evidenced by the relevant form for "Information & Consent Declaration regarding personal data," which included the relevant clause "(4) if you provide your consent, the physician will use your personal data for the following purposes: (...) posting your photographs online with care taken to ensure that your identity is not revealed directly or indirectly," which the complainant completed with a positive statement (by clicking YES). Following the first complaint (early January ...) of the complainant regarding the initial posting of her anonymized/pseudonymized photographs, from which she, as the data subject, could naturally infer that part of her body was depicted, the reported physician, in compliance with the accountability principle of Article 5(2) of the GDPR, was obliged, based on the retracted positive will of the complainant, to remove the disputed photographs from the internet, in accordance with Article 7(2) of the GDPR, and to "lock"/restrict the photographs in the medical record for the original/primary purpose of processing related to the provision of medical care to the complainant. It is emphasized that according to the provisions of Guidelines 5/2020 regarding consent under Regulation 2016/679 of the GDPR, every data controller must ensure that the data subject can withdraw consent as easily as it was given and at any time, without it being stipulated that the provision and withdrawal of consent must always be carried out in the same manner.

Consequently, the second (from ...) posting of the complainant's photographs on the social media platform of the reported surgeon, which he could attribute to the complainant using the means of verification at his disposal as stated in the preceding consideration of this document, was made without a legal basis, given that the complainant had retracted the positive statement of will she had provided for their posting. In any case, the reported physician is obliged to maintain an up-to-date record of positive statements of will and any withdrawals for the distinct purpose of processing "the posting of your photographs online with care taken to ensure that your identity is not revealed directly or indirectly," taking into account the reasoning of Recital 42 of the GDPR and the explanations provided in the aforementioned Guidelines 5/2020 of the EDPB. Moreover, the claim of the reported physician that "(...) the same photographs were mistakenly reposted, but processed according to our established practice, so that even the slightest possibility of identifying the patients is eliminated (...)"

is irrelevant in light of the retraction of the relevant statement of the complainant for the distinct purpose "of posting your photographs online with care taken to ensure that your identity is not revealed directly or indirectly." Furthermore, as specified in Guidelines 5/2020 of the EDPB, in cases where the data subject withdraws their consent and the data controller wishes to continue processing the personal data using another legal basis, the data controller cannot silently transition from consent (which is being withdrawn) to this other legal basis. Any change in the legal basis for processing must be communicated to the data subject in accordance with the information requirements set out in Articles 13 and 14 and the general principle of transparency. Consequently, the Authority finds that the posting of the disputed photographs, upon which the alleged violation under examination is based, is without legal basis.

17

of rights, constitutes distinct processing (i.e., extraction from a file of an identifiable individual and posting with the implementation of pseudonymization/anonymization measures) towards third parties, which was carried out without the consent of the complainant, otherwise despite the withdrawal of her relevant statement, in violation of the principle of legality of processing as per Article 5(1)(a) of the GDPR, in accordance with the provisions of Articles 6(1)(a) and 9(2)(a) of the GDPR.

8. Whereas, regarding the right to erasure ("right to be forgotten"), Article 17 of the GDPR provides that: "1. The data subject has the right to request the controller to erase personal data concerning them without undue delay, and the controller is obliged to erase personal data without undue delay if one of the following applies: (...) b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a) and there is no other legal basis for the processing, (...) d) the personal data have been processed unlawfully, (...) 3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary: a) for exercising the right of freedom of expression and information, b) for compliance with a legal obligation which requires processing by Union law or the law of a Member State to which the controller is subject or (...) d) for archiving purposes in the public interest, for scientific or historical research purposes or for statistical purposes in accordance with Article 89(1), provided that the right referred to in paragraph 1 is likely to make it impossible or seriously impede the achievement of the purposes of that processing (...)"

9. Whereas, in relation to the alleged violation of the right to erasure under Article 17 of the GDPR, from the entirety of the case file, it emerged that the complained physician, as the data controller, promptly satisfied, as the complainant also acknowledges, the request for the removal of the complainant's contentious photographs after the delivery of the extrajudicial protest – invitation – statement dated ..., in accordance with Article 17(2)(b) of the GDPR, and in compliance with the requirements of Article 12(3) of the GDPR, and regardless of the finding regarding the unlawful posting as stated above.

10. Whereas, concerning the right to restriction of processing, Article 18 of the GDPR provides, among other things, that: "1. The data subject shall have the right to obtain from the controller restriction of processing where one of the following applies: ... b) the processing is unlawful and the data subject opposes the erasure of personal data and requests instead the restriction of their use (...)"

11. Whereas, in relation to the alleged violation of the right to restriction of processing under Article 18 of the GDPR, taking into account the provisions of Article 14(1)-(4) of Law 3418/2005, it emerged that the complained physician, as the data controller, by removing the contentious photographs from the social media platform he maintains, after the delivery of the extrajudicial protest – invitation – statement of the complainant dated ..., restricted ("locked") the contentious photographs in his medical file for the primary initial purpose of providing medical care, for which he is obliged to retain them for at least ten years from the last visit (Article 14(4)(a) of Law 3418/2005), in compliance with the provisions of Article 18(1)(b) of the GDPR and according to the requirements of Article 12(3) of the GDPR, and regardless of the finding regarding the unlawful posting as stated above. Consequently, and in light of the considerations in the previous paragraphs, the complainant's assertion that the complained physician has not completely erased the contentious information from the file, nor has he stated to her that he would restrict the purpose of processing solely to medical purposes, is rejected as legally unfounded.

12. Whereas, regarding the right to object, Article 21 of the GDPR states that: "1. The data subject

shall have the right to object, at any time and

19

For reasons related to his particular situation, regarding the processing of personal data concerning him, which is based on Article 6 paragraph 1 point (e) or (f), including profiling based on the aforementioned provisions. The data controller no longer processes the personal data unless the data controller demonstrates compelling and legitimate reasons for the processing which override the interests, rights, and freedoms of the data subject or for the establishment, exercise, or defense of legal claims.

13. Considering the alleged violation of the right to object under Article 21 of the GDPR by the complainant, taking into account the considerations set forth in the preceding paragraphs (particularly paragraph 7) of this document, it has emerged that the complainant, with the extrajudicial notice – invitation – statement dated ..., requested (again) the removal of the contested photographs from the social media account of the complained physician (Instagram), and the latter complied with the relevant request and removed the contested photographs, for which, however, as demonstrated above, he had not obtained the valid consent of the complainant on which he based (in application of the accountability principle, Article 5 paragraph 2 of the GDPR) their posting, and limited their processing (recording and storage) in his medical file for the primary purpose of processing as he is obliged by law (Article 14 paragraph 4 point (a) of Law 3418/2005). After this, it is established that the complained physician, as the data controller, complied with the relevant request of the complainant in accordance with the provisions of Article 21 of the GDPR and in accordance with the requirements of Article 12 paragraph 3 of the GDPR, regardless of the finding regarding the illegal posting as mentioned above.

14. Finally, regarding the late complaint of the complainant about the violation of the right to information concerning the recipients of the data under Article 13 paragraph 1 point (e) of the GDPR, and specifically the claim that: “he never informed me of the third-party recipients of my data, namely the third company that manages the physician's social media, without any prior information and my consent,” from the entirety of the case file, taking into account the response dated ... (and with reference number APD G/EIS/7312/17.10.2023) from the complained physician, it was not proven at all that processing took place with a recipient of the data.

15. Nevertheless, in light of the examined complaint regarding the violation of the complainant's rights, it is established concerning the compliance of the complained physician with the requirements of the principles of Article 5 paragraph 1 of the GDPR regarding the information about the processing of personal data through the form of “information & consent declaration regarding personal data” that the complained physician provided (via a pre-printed form) the following information to the complainant: “If you provide your consent, the physician will use your personal data for the following purposes: (...) posting your photographs on the internet with care so that your identity is not revealed directly or indirectly.” Taking into account recitals 39 and 42 of the GDPR and the Guidelines on transparency under Regulation 2016/679 of the Article 29 Working Party, it appears that the provided information (“posting your photographs on the internet”) does not specify a particular purpose of processing in terms of transparency (Article 5 paragraph 1 point (a) of the GDPR) at the data collection stage, in accordance with Articles 5 paragraph 1 point (b) and 13 paragraph 1 point (c) of the GDPR. Furthermore, the information regarding “posting on the internet” cannot be interpreted as specifying a purpose of processing but describes the means, and indeed after the application of technical anonymization, for achieving the purpose of processing, which, as emerged from the complaint submitted to the Authority, was the promotion of the physician's work on the social media he maintains on Facebook and Instagram for informing the public (scientific and general) and attracting clientele. Consequently, the Authority finds that the provided information did not meet the requirements from WP260 rev.01 dated 11.04.2018 paragraphs 29 and 36, available at the link https://www.dpa.gr/sites/default/files/2020-05/wp260rev01_el.pdf.

21

Regarding transparent information for the specific purpose of processing as outlined in the provisions

of Articles 5(1)(a) and (b) and 13(1)(c) of the GDPR.

16. The Authority, in relation to the established violations of the provisions of Article 5(1)(a) of the GDPR, in accordance with the provisions of Articles 6(1)(a) and 9(2)(a) of the GDPR concerning the posting of personal data of the complainant despite the withdrawal of her relevant consent, as well as the provisions of Articles 5(1)(a) and (b) and 13(1)(c) of the GDPR regarding the opaque information concerning the purpose of posting the photographs during the data collection stage, deems it appropriate to exercise its corrective and advisory powers under Articles 58(2) and (3) of the GDPR. Specifically, regarding the first violation, the Authority, taking into account Recital 148 of the GDPR, the unintentional nature of the violation, particularly due to the error of the reported physician concerning the ability to identify the complainant through the posting of part of her body on Instagram, as well as the fact that he promptly removed the controversial photographs, orders, pursuant to Article 58(2)(d) of the GDPR, the reported physician, as the data controller, to maintain up-to-date records of the relevant declarations of will, as well as any withdrawals thereof, for individual processing activities, so that in compliance with the accountability principle of Article 5(2) of the GDPR, the legality of the processing is maintained.

Regarding the second violation, the Authority, taking into account Recital 148 of the GDPR, on the one hand, orders pursuant to Article 58(2)(d) of the GDPR, the reported physician, as the data controller, to reformulate the relevant section in the "information & consent declaration form regarding personal data" that he uses to inform his clients – patients about the distinct processing he carries out through the posting of their photographs, in such a way that the purpose of processing sought through the described method (posting on the internet) is clearly articulated. On the other hand, the Authority invites, pursuant to Article 58(3)(b) of the GDPR, the Panhellenic Medical Association to inform the local Medical Associations of the country, so that the physicians – members of these associations reformulate the information & consent declaration form regarding personal data, to the extent that it includes a corresponding section as in the examined complaint, specifying the purpose of processing sought through the posting of patients' photographs on the internet.

FOR THESE REASONS

The Authority,

a) orders, pursuant to Article 58(2)(d) of the GDPR, the reported physician, as the data controller, to maintain up-to-date records of the relevant consents, as well as any withdrawals thereof, for individual processing activities within the framework of providing medical care to his patients,

b) orders, pursuant to Article 58(2)(d) of the GDPR, the reported physician, as the data controller, to reformulate the relevant section in the "information & consent declaration form regarding personal data" that he uses to inform his clients – patients about the distinct processing he carries out through the posting of their photographs, in such a way that the purpose of processing sought through the described method is clearly articulated,

c) invites, pursuant to Article 58(3)(b) of the GDPR, the Panhellenic Medical Association to inform the local Medical Associations of the country, so that the physicians – members of these associations reformulate the information & consent declaration form regarding personal data, to the extent that it includes a corresponding section as in the examined complaint, specifying the purpose of processing sought through the posting of patients' photographs on the internet.

23

The Deputy President

The Secretary

Georgios Batzalexis

Irini Papageorgopoulou